

Jagdish Rai

Vs

Bajwa Developers Ltd.

Execution No.AO/01/2022
In Complaint AdC No.1277/2019

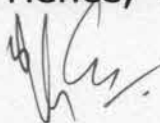
Present: Ms. Manisha Maggu Advocate, Proxy Ms. Manju Goyal Advocate, for complainant/DH (Through VC).

None for respondent/JD.

Order

A complaint (AdC No.1277/2019) titled as Jagdish Rai Vs Bajwa Developers Ltd., was filed before the then Adjudicating Officer (RERA Pb.) under Section 31 of the Real Estate (Regulation & Development) Act 2016 (hereinafter referred to as the Act). This complaint was partly allowed by the said officer vide order dated 26.10.2021, in favour of complainant, to the effect that he was entitled to recover principal amount of Rs.28,00,000/- with simple interest, at the SBI highest marginal cost of lending rate (as on today) plus 2% on the above said amount from the date of respective payments till realization and Rs.1,25,000/- as compensation on account of mental agony and litigation expenses, to be recovered from the respondent, within sixty days from the date of the said order.

2. Above said order dated 26.10.2021 was passed in the presence of both the parties, including the representative of the respondent and the same has become final. But the respondent did not make the payment to the complainant, as per the said order. Hence, this execution

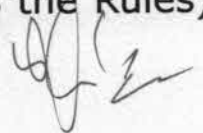


application filed by decree holder Jagdish Rai against the judgment debtor.

3. Since there was no stay order passed by the Hon'ble Tribunal/Higher Court/Forum/Authority, with regard to the operation of the said order dated 26.10.2021, so as per said order, Recovery Certificate was issued by this Bench to the District Collector, SAS Nagar Mohali, for recovery of the due amount from the respondent, as arrears of land revenue, as per provisions of the Act. List of property of the respondent, attached with this execution application was also sent to the said office of District Collector.

4. Perusal of the case in hand shows that number of reminders have been issued thereafter, to the office of District Collector, SAS Nagar Mohali for affecting recovery in this case, but of no use. It is pertinent to mention here that recovery in this has to be affected as arrears of land revenue.

5. Heard. Now question arises as to which is the proper Office/Forum/Authority competent to affect recovery in this case by way of arrears of the land revenue?. The answer is given in Section 40 (1) of the Act and Rule 24 of the Punjab State Real Estate (Regulation and Development) Rules 2017 (hereinafter referred to as the Rules), which are reproduced as under:-



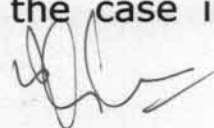
Sec.40. Recovery of interest or penalty or compensation and enforcement of order, etc.

(1) If a promoter or an allottee or a real estate agent, as the case may be, fails to pay any interest or penalty or compensation imposed on him, by the adjudicating officer or the Regulatory Authority or the Appellate Authority, as the case may be, under this Act or the rules and regulations made thereunder, it shall be recoverable from such promoter or allottee or real estate agent, in such manner as may be prescribed as an arrears of land revenue.

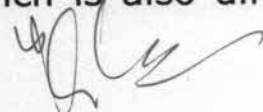
Rule 24. Recovery of interest, penalty and compensation. [Sections 40(1) and 84(2)(r)- The recovery of the amount due such as interest, penalty or compensation shall be recovered as arrears of land revenue in the manner provided under applicable **local laws.**

Local law in Punjab for affecting recovery of amount as arrears of land revenue is **The Punjab Land Revenue Act, 1887**. Sections 61 to 96 of this Act deal with the "collection of land revenue", whereas Section 67 of this Act specifically deals with the process for recovery of arrears of land revenue.

Perusal of record further shows that Project of the respondents falls within the revenue limits of District SAS Nagar, (Mohali) Pb. As per provisions of Section 40 (1) of the Act and Rule 24 of the Rules, coupled with the provisions of Punjab Land Revenue Act 1887 and other relevant law/rules, it is the concerned District Collector, who is competent to affect the recovery in the case in hand as

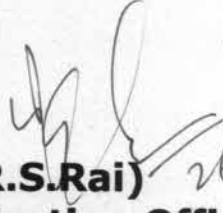


arrears of land revenue, from the respondent/JD, as per the said order dated 26.10.2021 passed by the Adjudicating Officer. This office has nothing to do, now in this case. So, fresh Recovery Certificate in this case be issued to the concerned District Collector alongwith list of property of the respondent and copy of this order, for doing the needful. Legal Branch is directed to facilitate the issuance of Recovery Certificate in accordance with the provisions of [Section-40 (1) and 84(2)(r)] of the Real Estate (Regulation and Development) Act, 2016 to District Collector-cum-Deputy Commissioner, SAS Nagar, Mohali for realization of the due amount as the arrears of land revenue at the earliest. The forwarding letter is required to specify the directions of Hon'ble High Court of Punjab & Haryana in the case of Sunder Krishnan V/s M/s. ATS Estates Pvt. Ltd. Execution/AO/26/2021 in complaint No.TR/AO/52/2019 in GC No.1178/2019, to the effect that the execution has to be decided within 60 days. The directions had been issued on the basis of guidelines of Hon'ble Supreme Court in Civil Appeal Nos.1659-1660 of 2021 (Special Leave to Appeal Nos.7965-7966/2020) and therefore, all efforts have to be made for realization of the due amount by all means. Any amount paid by respondent/JD, out of the due amount, in the present case, shall find mentioned in the recovery certificate/relevant document. Legal Branch is also directed



to get the report of F&A Branch regarding exact due amount to be recovered from the respondent/JD, if required. Copy of this order alongwith copy of recovery certificate be sent to the concerned parties for their information and further necessary action. Since nothing is to be done in this execution application now, by this office, so this execution application stands disposed of, accordingly. However, it is made clear that the office of the said District Collector shall send the intimation to this Bench, as and when recovery is affected in this case as per said order dated 26.10.2021. After proper compliance of this order by this office, file be consigned to the record room.

Pronounced
Dated:26.06.2026


(R.S.Rai) 26/6/2026
Adjudicating Officer,
RERA, Punjab.